

Court No. - 17

Case :- WRIT - C No. - 1003598 of 2008

Petitioner :- U.P.Power Corp. Ltd. Through Executive Engineer

Respondent :- Ombudsmen 2/475 Vibhav Khand Gomti Nagar Lko.And 2 Ors.

Counsel for Petitioner :- Manoj Kumar Dwivedi

Counsel for Respondent :- I.B.Singh,Abhishek Mishra,Arvind Pandey

Hon'ble Shree Prakash Singh,J.

Sri Amarjeet Singh Rakhra, learned counsel for the petitioner and Sri Sanjay Singh, learned counsel for the respondent no.1 are present.

Sri Amarjeet Singh Rakhra, learned counsel for the petitioner has pointed out that Sri Manoj Kumar Dwivedi, Advocate, who was earlier appearing for U.P. Power Corporation is no longer the counsel for U.P. Power Corporation. He submits that, in this regard, he may be given some time to seek instructions from the department.

As prayed, list/put up this case in the week commencing 9th May, 2022 showing the name of Sri Amarjeet Singh Rakhra, Advocate from the side of the petitioner as well as Sri Sanjay Singh, Advocate from the side of respondent no.1.

Order Date :- 8.4.2022

Ashutosh



2025:AHC-LKO:68407

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 1003598 of 2008

U.P.Power Corp. Ltd. Through Executive Engineer

.....Petitioner(s)

Versus

Ombudsmen 2/475 Vibhav Khand Gomti Nagar
Lko.And 2 Ors.

.....Respondent(s)

Counsel for Petitioner(s)	: Manoj Kumar Dwivedi, Amarjeet Singh Rakhra
Counsel for Respondent(s)	: I.B.Singh, Abhishek Mishra, Arvind Pandey, Sanjay Singh

Court No. - 6

HON'BLE JASPREET SINGH, J.

1. Heard Shri Amarjeet Singh Rakhra, learned counsel for the petitioner and Shri Sanjay Singh, learned counsel for the respondent - Ombudsmen.
2. By means of the instant petition, the petitioner assails the impugned order dated 23.05.2008, passed by the Ombudsmen.
3. Learned counsel for the petitioner has pointed that the issue involved in the instant petition relates to the order dated 23.05.2008, which was made the subject matter of challenge in WRIT-C No.1003603 of 2008; WRIT-C No.1003604 of 2008 and WRIT-C No.1003605 of 2008, which have been decided by a Coordinate Bench of this Court by means of its separate orders dated 21.03.2023 and all the three writ petitions were allowed. It is urged that the Ombudsmen cannot issue directions contrary to the Electricity Act, 2003 and the Electricity Supply Code, 2005.
4. It is urged that the instant petition also involves the same question and for the said reasons, the instant petition also needs to be allowed in terms whereof.
5. Shri Sanjay Singh, learned counsel appearing for the respondent - Ombudsmen does not dispute the aforesaid facts.
6. A Coordinate Bench of this Court in **Writ-C No.1003603 of 2008**

[U.P. Power Corporation Ltd v. Ombudsmen and 2 others], decided on 21.03.2023 in Paragraph 12 to 16 has held as under:-

"12. The Ombudsman after referring to such paragraphs has stated that since the licensee is not required to pay compensation to the consumers for interruption of supply of electricity for reasons beyond its control, in the same manner, a consumer is not required to pay electricity charges in case there is no electricity consumed by him for reasons beyond his control. Such logic that has been applied in allowing the Appeal No.96 of 2008 is completely beyond the provisions of the Electricity Act 2003 and the Electricity Supply Code 2005. The Ombudsman ought to have first looked in the matter where he could have directly entertained such appeal without there being any order passed by the Consumers Grievance Redressal Forum. After satisfying himself that he has jurisdiction in the matter, he should have looked into paragraph 3.8 and 3.9 of the Electricity Supply Code and the Tariff Orders, which provide that minimum monthly charges/fixed charges have to be announced by the Commission in accordance with Section 24 of the UP Electricity Reforms Act, 1999 consistent with the provisions of Electricity Act, 2003 and the licensee is entitled to decide other charges as mentioned in paragraph 3.8.

The licensee may also realize charges relating to other matters not specifically mentioned in the Tariff Orders with the prior approval of the Commission. The Tariff schedule has to be published on the website of the licensee and the consumers had to pay the charges accordingly. The minimum monthly charges as per the Tariff Order being settled, if the consumer i.e. the respondent no.3 was prevented from running his saw mill, he could have approached the Executive Engineer of the Distribution Division concerned for a permanent disconnection. As soon as the order passed by the Supreme Court was communicated to him by the Divisional Forest Officer for suspending operation of his saw mill. He did not ask for a permanent disconnection. The minimum monthly

charges therefore had to be paid by him.

13. Since minimum monthly charges were a part of Tariff Order, notified by the Electricity Regulatory Commission, it was binding upon the licensee and the licensee could not have waived it only on the request made by the consumers. The respondent no.3 could have challenged the Tariff Order before the appropriate forum.

14. This court has perused the orders impugned. It finds therefrom that there is no consideration at all of the Tariff Order or of the relevant provisions of the Electricity Act 2003 or the Electricity Supply Code 2005. The Tariff Order having been notified by the Electricity Regulatory Commission, it was binding upon the petitioners. The petitioners could not have been asked to ignore the same or act against the same.

15. In view of the law settled by Hon'ble Supreme Court, in the case of Narinder Chand Hem Raj & Others Vs Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh, 1971 AIR 2399, no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.

16. The order passed by the Ombudsman dated 23.05.2008 is set aside."

7. In view of the aforesaid, the petitioner is also entitled to the benefit of the orders dated 21.03.2023 passed in the WRIT-C No.1003603 of 2008; WRIT-C No.1003604 of 2008 and WRIT-C No.1003605 of 2008 respectively.

8. In the result, the instant petition also stands **allowed** in terms of the orders dated 21.03.2023 passed in the WRIT-C No.1003603 of 2008; WRIT-C No.1003604 of 2008 and WRIT-C No.1003605 of 2008 respectively.

(Jaspreet Singh,J.)

October 31, 2025

Rakesh/-